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SENATE FLOOR VERSION - SB1651 SFLR
(Bold face denotes Committee Amendments)

1 certain dissemination of information; amending 59
2 O.S. 2021, Sections 531, 533, 534, and 535, which
3 relate to the Oklahoma Athletic Trainers Act;
4 modifying renewal procedures and requirements;
5 eliminating certain fee amounts; modifying certain
6 penalties; providing certain exceptions; amending 59
7 O.S. 2021, Section 540.11, which relates to the
8 Therapeutic Recreation Practice Act; removing certain
9 condition for expiration of temporary license;
10 authorizing the Board to obtain a national criminal
11 history background check for occupational therapist
12 applicants; specifying certain screening procedures;
13 prohibiting certain dissemination of information;
14 amending 59 O.S. 2021, Section 889.5, which relates
15 to the Music Therapy Practice Act; providing for
16 temporary licensure; amending 59 O.S. 2021, Sections
17 2033 and 2039, which relate to the Respiratory Care
18 Practice Act; modifying qualifications for licensure
19 by endorsement; authorizing practice through
20 telemedicine; amending 76 O.S. 2021, Section 17,
21 which relates to medical malpractice; eliminating
22 certain reporting requirement; updating statutory
23 references; updating statutory language; repealing 59
24 O.S. 2021, Section 493.2, as amended by Section 3,
Chapter 350, O.S.L. 2025 (59 O.S. Supp. 2025, Section
493.2), which relates to foreign medical applicants;
providing for codification; and providing an
effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 492, is
amended to read as follows:

Section 492. A. Every person shall be regarded as practicing
allopathic medicine within the meaning and provisions of this act,
who shall append to his or her name the letters "M.D.", "Physician"
or any other title, letters or designation which represent that such
person is a physician, or who shall for a fee or any form of

1 compensation diagnose ~~and/or~~ or treat disease, injury or deformity
2 of persons in this state by any allopathic legend drugs, surgery,
3 manual, or mechanical treatment unless otherwise authorized by law.

4 B. A hospital or related institution as such terms are defined
5 in Section 1-701 of Title 63 of the Oklahoma Statutes, which has the
6 principal purpose or function of providing hospital or medical care,
7 including, but not limited to, any corporation, association, trust,
8 or other organization organized and operated for such purpose, may
9 employ one or more persons who are duly licensed to practice
10 medicine in this state without being regarded as itself practicing
11 medicine within the meaning and provisions of this section. The
12 employment by the hospital or related institution of any person who
13 is duly licensed to practice medicine in this state shall not, in
14 and of itself, be considered as an act of unprofessional conduct by
15 the person so employed. Nothing provided herein shall eliminate,
16 limit, or restrict the liability for any act or failure to act of
17 any hospital, any hospital's employees, or persons duly licensed to
18 practice medicine.

19 C. The definition of the practice of medicine and surgery shall
20 include, but is not limited to:

21 1. Advertising, holding out to the public, or representing in
22 any manner that one is authorized to practice medicine and surgery
23 in this state;
24

1 2. Any offer or attempt to prescribe, order, give, or
2 administer any drug or medicine and surgery for the use of any other
3 person, except as otherwise authorized by law;

4 3. a. ~~any~~ Any offer or attempt, except as otherwise
5 authorized by law, to prevent, diagnose, correct, or
6 treat in any manner or by any means, methods, devises,
7 or instrumentalities except for manual manipulation
8 any disease, illness, pain, wound, fracture,
9 infirmary, defect, or abnormal physical or mental
10 condition of any person, including the management of
11 pregnancy and parturition, except as otherwise
12 authorized by law,

13 b. ~~except~~ Except as provided in subsection D of this
14 section, performance by a person within or outside of
15 this state, through an ongoing regular arrangement, of
16 diagnostic or treatment services, including, but not
17 limited to, stroke prevention and treatment, through
18 electronic communications for any patient whose
19 condition is being diagnosed or treated within this
20 state by a physician duly licensed and practicing in
21 this state. A person who performs any of the
22 functions covered by this subparagraph submits himself
23 or herself to the jurisdiction of the courts of this
24

1 state for the purposes of any cause of action
2 resulting from the functions performed, and
3 c. ~~nothing~~ Nothing in the Oklahoma Allopathic Medical and
4 Surgical Licensure and Supervision Act shall be
5 construed to affect or give jurisdiction to the State
6 Board of Medical Licensure and Supervision over any
7 person other than medical doctors or persons holding
8 themselves out as medical doctors;

9 4. Any offer or attempt to perform any surgical operation upon
10 any person, except as otherwise authorized by law; and

11 5. The use of the title Doctor of Medicine, Physician, Surgeon,
12 Physician and Surgeon, Dr., M.D. or any combination thereof in the
13 conduct of any occupation or profession pertaining to the
14 prevention, diagnosis, or treatment of human disease or condition
15 unless, where appropriate, such a designation additionally contains
16 the description of another branch of the healing arts for which one
17 holds a valid license in this state.

18 D. The practice of medicine and surgery, as defined in this
19 section, shall not include:

20 1. A student while engaged in training in a medical school
21 approved by the Board or while engaged in graduate medical training
22 under the supervision of the medical staff of a hospital or other
23 health care facility approved by the ~~state medical board~~ Board for
24

1 such training, except that a student engaged in graduate medical
2 training shall hold a license issued by the Board for such training;

3 2. Any person who provides medical treatment in cases of
4 emergency where no fee or other consideration is contemplated,
5 charged or received;

6 3. A commissioned medical officer of the ~~armed forces~~ Armed
7 Forces of the United States or medical officer of the United States
8 Public Health Service or the United States Department of Veterans
9 Affairs ~~of the United States~~ in the discharge of official duties
10 ~~and/or~~ or within federally controlled facilities; and provided that
11 such person shall be fully licensed to practice medicine and surgery
12 in one or more jurisdictions of the United States; provided further,
13 that such person who holds a medical license in this state shall be
14 subject to the provisions of the Oklahoma Allopathic Medical and
15 Surgical Licensure and Supervision Act;

16 4. Any person licensed under any other act when properly
17 practicing in the healing art for which that person is duly
18 licensed;

19 5. The practice of those who endeavor to prevent or cure
20 disease or suffering by spiritual means or prayer;

21 6. Any person administering a domestic or family remedy to a
22 member of such person's own family;

23 7. Any person licensed to practice medicine and surgery in
24 another state or territory of the United States who:

- 1 a. renders emergency medical treatment ~~or~~,
2 b. briefly provides critical medical service at the
3 specific lawful direction of a medical institution or
4 federal agency that assumes full responsibility for
5 that treatment or service and is approved by the
6 Board, or
7 c. renders emergency medical treatment at a sporting
8 event for members of the team the physician is
9 employed or contracted by;

10 8. Any person who is licensed to practice medicine and surgery
11 in another state or territory of the United States whose sole
12 purpose and activity is limited to brief actual consultation with a
13 specific physician who is licensed to practice medicine and surgery
14 by the Board, other than a person with a special or restricted
15 license; or

16 9. The practice of any other person as licensed by appropriate
17 agencies of this state, provided that such duties are consistent
18 with the accepted standards of the person's profession and the
19 person does not represent himself or herself as a Doctor of
20 Medicine, Physician, Surgeon, Physician and Surgeon, Dr., M.D., or
21 any combination thereof.

22 E. Nothing in the Oklahoma Allopathic Medical and Surgical
23 Licensure and Supervision Act shall prohibit:
24

1 1. The service rendered by a physician's unlicensed trained
2 assistant, if such service is rendered under the supervision and
3 control of a licensed physician pursuant to Board rules, provided
4 such rules are not in conflict with the provisions of any other
5 healing arts licensure act or rules promulgated pursuant to such
6 act; or

7 2. The service of any other person duly licensed or certified
8 by the state to practice the healing arts.

9 F. Nothing in the Oklahoma Allopathic Medical and Surgical
10 Licensure and Supervision Act shall prohibit services rendered by
11 any person not licensed by the Board and practicing any
12 ~~non-allopathic~~ non-allopathic healing practice.

13 G. Nothing in the Oklahoma Allopathic Medical and Surgical
14 Licensure and Supervision Act shall be construed as to require a
15 physician to secure a Maintenance of Certification (MOC) as a
16 condition of licensure, reimbursement, employment or admitting
17 privileges at a hospital in this state. For the purposes of this
18 subsection, "Maintenance of Certification (MOC)" shall mean a
19 continuing education program measuring core competencies in the
20 practice of medicine and surgery and approved by a ~~nationally-~~
21 ~~recognized~~ nationally recognized accrediting organization.

22 SECTION 2. AMENDATORY 59 O.S. 2021, Section 493.1, as
23 amended by Section 2, Chapter 350, O.S.L. 2025 (59 O.S. Supp. 2025,
24 Section 493.1), is amended to read as follows:

1 Section 493.1. A. An applicant to practice medicine and
2 surgery in this state shall provide to the State Board of Medical
3 Licensure and Supervision and attest to the following information
4 and documentation in a manner required by the Board:

5 1. The applicant's full name and all aliases or other names
6 ever used, current address, Social Security number, and date and
7 place of birth;

8 2. ~~A photograph of the applicant, taken within the previous~~
9 ~~twelve (12) months;~~

10 ~~3.~~ All documents and credentials required by the Board, ~~or~~
11 ~~notarized photocopies~~ or other verification acceptable to the Board
12 of such documents and credentials;

13 ~~4.~~ 3. A list of all jurisdictions, United States or foreign, in
14 which the applicant is licensed or has applied for licensure to
15 practice medicine and surgery or is authorized or has applied for
16 authorization to practice medicine and surgery;

17 ~~5.~~ 4. A list of all jurisdictions, United States or foreign, in
18 which the applicant has been denied licensure or authorization to
19 practice medicine and surgery or has voluntarily surrendered a
20 license or an authorization to practice medicine and surgery;

21 ~~6.~~ 5. A list of all sanctions, judgments, awards, settlements,
22 or convictions against the applicant in any jurisdiction, United
23 States or foreign, that would constitute grounds for disciplinary
24

1 action under the Oklahoma Allopathic Medical and Surgical Licensure
2 and Supervision Act or the Board's rules;

3 ~~7.~~ 6. A detailed educational history, including places,
4 institutions, dates, and program descriptions, of all his or her
5 education, including all college, preprofessional, professional, and
6 professional graduate education;

7 ~~8.~~ 7. A detailed chronological history from ~~age eighteen (18)~~
8 ~~years~~ graduation from medical school to the present, including
9 employment, military service (United States or foreign), and all
10 professional degrees, licenses, or certificates now or ever held;
11 and

12 ~~9.~~ 8. Any other information or documentation specifically
13 requested by the Board that is related to the applicant's ability to
14 practice medicine and surgery.

15 B. The applicant shall possess a valid degree of Doctor of
16 Medicine from a medical college or school located in the United
17 States, its territories or possessions, or Canada that was approved
18 by the Board or by a private nonprofit accrediting body approved by
19 the Board at the time the degree was conferred. The application
20 shall be considered by the Board based upon the product and process
21 of the medical education and training.

22 C. The applicant shall have satisfactorily completed twelve
23 (12) months of progressive postgraduate medical training as
24 promulgated by rule by the Board. The Board shall consider as

1 evidence of acceptability the sponsoring institution's accreditation
2 by the Accreditation Council for Graduate Medical Education (ACGME),
3 the American Society of Transplant Surgeons (ASTS), the Royal
4 College of Physicians and Surgeons of Canada, the College of Family
5 Physicians of Canada, the Royal College of Surgeons of Edinburgh,
6 the Royal College of Surgeons of England, the Royal College of
7 Physicians and Surgeons of Glasgow, or the Royal College of Surgeons
8 in Ireland.

9 D. The applicant shall submit a history from ~~the administration~~
10 ~~of the~~ any medical school ~~from~~ which the applicant ~~graduated~~
11 attended of any suspension, probation, or disciplinary action taken
12 against the applicant while a student at that institution.

13 E. The applicant shall have passed medical licensing
14 examination(s) consistent with policies and procedures regarding the
15 number of medical licensure exam attempts as established by the
16 United States Medical Licensing Examination program unless granted
17 an exception by the Board.

18 F. The applicant shall have demonstrated a familiarity with all
19 appropriate statutes and rules and regulations of this state and the
20 federal government relating to the practice of medicine and surgery.

21 G. The applicant shall be physically, mentally, professionally,
22 and morally capable of practicing medicine and surgery in a manner
23 reasonably acceptable to the Board and in accordance with federal
24 law and shall be required to submit to a physical, mental, or

1 professional competency examination or a drug dependency evaluation
2 if deemed necessary by the Board.

3 H. The applicant shall not have committed or been found guilty
4 by a competent authority, United States or foreign, of any conduct
5 that would constitute grounds for disciplinary action under the
6 Oklahoma Allopathic Medical and Surgical Licensure and Supervision
7 Act or rules of the Board. The Board may modify this restriction
8 for cause.

9 I. Upon request by the Board, the applicant shall make a
10 personal appearance before the Board or a representative thereof for
11 interview, examination, or review of credentials. ~~At the discretion~~
12 ~~of the Board, the applicant shall be required to present his or her~~
13 ~~original medical education credentials for inspection during the~~
14 ~~personal appearance.~~

15 J. The applicant shall be held responsible for verifying to the
16 satisfaction of the Board the identity of the applicant and the
17 validity of all credentials required for his or her medical
18 licensure. The Board may review and verify medical credentials and
19 screen applicant records through recognized national physician
20 information services.

21 K. The applicant shall have paid all fees and completed and
22 attested to the accuracy of all application and information forms
23 required by the Board.

24 L. Grounds for the denial of a license shall include:

1 1. Use of false or fraudulent information by an applicant;

2 2. Suspension or revocation of a license in another state
3 unless the license has been reinstated in that state;

4 3. Refusal of licensure in another state other than for
5 examination failure; and

6 4. Multiple examination failures.

7 M. The Board shall not deny a license to a person otherwise
8 qualified to practice allopathic medicine within the meaning of the
9 Oklahoma Allopathic Medical and Surgical Licensure and Supervision
10 Act solely because the person's practice or a therapy is
11 experimental or nontraditional.

12 SECTION 3. AMENDATORY 59 O.S. 2021, Section 493.2, as
13 amended by Section 1, Chapter 61, O.S.L. 2025 (59 O.S. Supp. 2025,
14 Section 493.2), is amended to read as follows:

15 Section 493.2. A. ~~Unless~~ Except as otherwise provided by this
16 section, ~~foreign applicants and~~ international medical school
17 graduate applicants shall ~~otherwise~~ meet all requirements for full
18 and unrestricted licensure as provided in Sections 492.1 and 493.1
19 of this title.

20 B. 1. ~~A foreign~~ An international applicant for full and
21 unrestricted licensure shall possess the degree of Doctor of
22 Medicine or ~~a Board-approved~~ an equivalent approved by the State
23 Board of Medical Licensure and Supervision based on satisfactory
24 completion of educational programs from ~~a foreign~~ an international

1 medical school as evidenced by the Educational Commission for
2 Foreign Medical Graduates (ECFMG).

3 2. In the event the ~~foreign~~ international medical school
4 utilized clerkships in the United States, its territories or
5 possessions, such clerkships shall have been performed in hospitals
6 and schools that have programs accredited by the Accreditation
7 Council for Graduate Medical Education (ACGME).

8 C. 1. An international medical school graduate may apply for
9 limited licensure. The Board may issue a limited license of defined
10 duration to an international medical school graduate upon finding
11 sufficient evidence that the international medical school graduate
12 has:

- 13 a. graduated from a medical school which meets the
14 requirements of the Educational Commission for Foreign
15 Medical Graduates (ECFMG), and
- 16 b. paid any application fee as set by the Board.

17 2. The Board shall also find sufficient evidence of the
18 competency of the international medical school graduate through the
19 following:

- 20 a. verification of successful completion of a three-year
21 postgraduate training program in the graduate's
22 licensing country, or
- 23 b. verification that the applicant otherwise practiced as
24 a medical professional performing the duties of a

1 physician for at least three (3) of the last five (5)
2 years outside the United States verified by the
3 employer or health care ~~provider~~ facility.

4 3. An applicant under ~~subparagraphs a and b of~~ paragraph 1 of
5 this subsection shall submit sufficient evidence that the applicant
6 is an international medical school graduate and has an offer for
7 employment as a physician at a health care ~~provider~~ facility that
8 operates in this state and has a postgraduate training program
9 accredited by the Accreditation Council for Graduate Medical
10 Education (ACGME) in place.

11 4. During the term of the limited license, an international
12 medical school graduate who is granted a limited license under
13 ~~subparagraphs a and b of~~ paragraph 1 of this subsection shall only
14 provide medical services at a health care ~~provider~~ facility that has
15 in place a postgraduate training program accredited by the
16 Accreditation Council for Graduate Medical Education (ACGME).

17 5. An international medical school graduate who is granted a
18 limited license shall be supervised by the chair of the department
19 within the applicant's intended practice during the term of the
20 limited license.

21 6. A limited license granted under this subsection shall be
22 renewed annually upon approval of the Board.

23 7. Three (3) years after the first date the limited licensee
24 begins to practice medicine at a health care ~~provider~~ facility in

1 this state, the Board may grant a full and unrestricted license to
2 practice medicine to a limited licensee under ~~subparagraphs a and b~~
3 ~~of~~ paragraph 1 of this subsection who:

4 a. is in good standing without disciplinary actions or
5 investigations pending from his or her limited
6 licensure period, and

7 b. provides documentation of a passing score for United
8 States Medical Licensing Examination (USMLE) Step 1, 2
9 CK, and 3.

10 ~~7.~~ 8. A limited licensee who obtains a full and unrestricted
11 license is not thereafter subject to the restriction of practicing
12 at a health care ~~provider~~ facility with a postgraduate training
13 program.

14 ~~8.~~ 9. As used in this subsection, "health care ~~provider~~"
15 facility" means a facility that will be employing the licensee
16 within an academic health system or the Oklahoma State University
17 College of Osteopathic Medicine.

18 D. Any ~~foreign applicant or~~ international medical school
19 graduate shall have a command of the English language that is
20 satisfactory to the State Board of Medical Licensure and
21 Supervision, ~~determined~~ as demonstrated by certification by the
22 Educational Commission for Foreign Medical Graduates (ECFMG).

23 E. The Board may promulgate rules requiring all ~~foreign~~
24 international applicants to satisfactorily complete at least twelve

1 (12) months and up to twenty-four (24) months of Board-approved
2 progressive graduate medical training as determined necessary by the
3 Board for the protection of the public health, safety, and welfare.

4 F. All credentials, diplomas and other required documentation
5 in a foreign language submitted to the Board by such applicants
6 shall be accompanied by ~~notarized~~ English translations performed by
7 an institution ~~accredited by the North Central Association of~~
8 ~~Colleges and Schools~~ according to the requirements of the Board.

9 G. ~~Foreign applicants and international~~ International medical
10 school graduates shall provide satisfactory evidence of having met
11 the requirements for permanent residence or temporary nonimmigrant
12 status as set forth by the United States ~~Immigration and~~
13 ~~Naturalization Service~~ Department of Homeland Security.

14 H. The Board ~~requires~~ shall require original source
15 verification of the Educational Commission for Foreign Medical
16 Graduates (ECFMG) Certification or Medical Council of Canada
17 Qualifying Examination (MCCQUE) Certification.

18 I. The applicant shall not have committed or been found guilty
19 by a competent authority, United States or foreign, of any conduct
20 that would constitute grounds for disciplinary action under this ~~act~~
21 section or rules by the Board. The Board may modify this
22 restriction for cause.

1 J. If the applicant has not been practicing medicine for more
2 than two (2) years, the applicant shall be subject to Section 495h
3 of this title.

4 SECTION 4. AMENDATORY 59 O.S. 2021, Section 493.4, is
5 amended to read as follows:

6 Section 493.4. A. No person who is granted a special license
7 ~~or a special training license~~ shall practice outside the limitations
8 of the license.

9 B. To be eligible for special ~~or special training~~ licensure,
10 the applicant shall have completed all the requirements for full and
11 unrestricted medical licensure except graduate education ~~and/or,~~
12 licensing examination, or other requirements relative to the basis
13 for the special license ~~or special training license~~.

14 C. By rule, the State Board of Medical Licensure and
15 Supervision shall establish restrictions for special ~~and special~~
16 ~~training~~ licensure to assure that the holder will practice only
17 under appropriate circumstances as set by the Board.

18 D. A special license ~~or special training license~~ shall be
19 renewable annually upon the approval of the Board and upon the
20 evaluation of performance in the special circumstances upon which
21 the special license ~~or special training license~~ was granted.

22 E. The issuance of a special license ~~or a special training~~
23 ~~license~~ shall not be construed to imply that a full and unrestricted
24 medical license will be issued at a future date.

1 F. All other provisions of the Oklahoma Allopathic Medical and
2 Surgical Licensure and Supervision Act shall apply to holders of
3 special licenses ~~or special training licenses~~.

4 G. This section shall not limit the authority of any state
5 agency or educational institution in this state which employs a
6 ~~special or special training~~ specially licensed physician to impose
7 additional practice limitations upon such physician.

8 SECTION 5. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 493.4a of Title 59, unless there
10 is created a duplication in numbering, reads as follows:

11 A. No person who is granted a special training license for
12 postgraduate training shall practice outside the limitations of the
13 license.

14 B. To be eligible for a special training license for
15 postgraduate training, the applicant shall have completed all the
16 requirements for full and unrestricted medical licensure except
17 graduate education, licensing examination, or other requirements
18 relative to the basis for the special training license.

19 C. By rule, the State Board of Medical Licensure and
20 Supervision shall establish restrictions for a special training
21 license for postgraduate training to assure that the holder will
22 practice only under appropriate circumstances as set by the Board.

23 D. A special training license for postgraduate training shall
24 be renewable annually upon the approval of the Board Secretary and

1 upon the evaluation of performance in the special circumstances upon
2 which the special training license was granted.

3 E. The issuance of a special training license for postgraduate
4 training shall not be construed to imply that a full and
5 unrestricted medical license will be issued at a future date.

6 F. All other provisions of the Oklahoma Allopathic Medical and
7 Surgical Licensure and Supervision Act shall apply to holders of
8 special training licenses for postgraduate training.

9 G. This section shall not limit the authority of any state
10 agency or educational institution in this state which employs a
11 person licensed under this section to impose additional practice
12 limitations upon such physician.

13 SECTION 6. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 493.5b of Title 59, unless there
15 is created a duplication in numbering, reads as follows:

16 The holder of a full and unrestricted license may choose at any
17 time to retire and apply for physician emeritus licensure status by
18 notifying the State Board of Medical Licensure and Supervision.
19 There shall be no fee associated with obtaining or maintaining
20 physician emeritus licensure status. An applicant for a physician
21 emeritus license shall apply in a manner required by the Board.

22 SECTION 7. AMENDATORY 59 O.S. 2021, Section 503.1, is
23 amended to read as follows:

1 Section 503.1. A. The Secretary of the State Board of Medical
2 Licensure and Supervision, upon concurrence of the President of the
3 Board that an emergency exists for which the immediate suspension of
4 a license is imperative for the public health, safety and welfare,
5 may conduct a hearing as contemplated by Section 314 of Title 75 of
6 the Oklahoma Statutes and may, upon probable cause, suspend
7 temporarily the license of any person under the jurisdiction of the
8 Board.

9 B. The Secretary shall comply with all notice requirements of
10 the Administrative Procedures Act and shall immediately set the
11 matter for full hearing before the Board in compliance with the
12 Administrative Procedures Act and the Oklahoma Allopathic Medical
13 and Surgical Licensure and Supervision Act.

14 SECTION 8. AMENDATORY 59 O.S. 2021, Section 529, is
15 amended to read as follows:

16 Section 529. A. There is hereby created the Athletic Trainers
17 Advisory Committee, to be composed of five (5) members to be
18 appointed by the State Board of Medical Licensure and Supervision.
19 To qualify as a member, a person must be a citizen of the United
20 States and a resident of Oklahoma for five (5) years immediately
21 preceding appointment. ~~Two~~ Three members shall be licensed athletic
22 trainers, ~~except for the initial appointees,~~ and two members shall
23 be physicians licensed by the state ~~and one member shall be a member~~
24 ~~of the Oklahoma Coaches Association who shall be selected by the~~

1 ~~Board of the Association. Except for the initial appointees,~~
2 ~~members.~~ Members shall hold office for terms of six (6) years. In
3 the event of death, resignation or removal of any member, the
4 vacancy of the unexpired term shall be filled by the Board in the
5 same manner as other appointments.

6 B. The Athletic Trainers Advisory Committee shall ~~assist the~~
7 ~~Board in conducting examinations for applicants and shall~~ advise the
8 Board on all matters pertaining to the application and licensure of
9 athletic trainers, which shall exclude disciplinary matters.

10 Members of the Committee shall be reimbursed for expenses incurred
11 while performing their duties under the provisions of ~~this act~~ the
12 Oklahoma Athletic Trainers Act in accordance with the State Travel
13 Reimbursement Act.

14 SECTION 9. AMENDATORY 59 O.S. 2021, Section 530, is
15 amended to read as follows:

16 Section 530. A. ~~An applicant to be eligible for an athletic~~
17 ~~trainer license must meet one of the following qualifications:~~

18 ~~1. Has successfully completed the athletic training curriculum~~
19 ~~requirements of an accredited college or university approved by the~~
20 ~~Board and provide proof of graduation;~~

21 ~~2. Be licensed or certified in physical therapy and has spent~~
22 ~~at least eight hundred (800) hours working under the direct~~
23 ~~supervision of a licensed athletic trainer; or~~
24

1 ~~3. Holds a four-year degree from an accredited college or~~
2 ~~university and has completed at least two (2) consecutive years of~~
3 ~~supervision, military duty excepted, as an apprentice athletic~~
4 ~~trainer under the direct supervision of a licensed athletic trainer.~~

5 ~~B.~~ An applicant for an athletic trainer license shall submit an
6 application to the State Board and ~~submit the required examination~~
7 ~~fee of Medical Licensure and Supervision.~~ The applicant is entitled
8 to an athletic trainer license if he ~~is qualified as provided in~~
9 ~~subsection A of this section,~~ or she satisfactorily completes the
10 examination ~~administered by the Board,~~ of the Board of Certification
11 for the Athletic Trainer or successor organization and pays the
12 applicable license fee, ~~and has.~~ Additionally, the applicant shall
13 not have committed an act which constitutes grounds for denial of a
14 license under ~~Section 8 of this act~~ the Oklahoma Athletic Trainers
15 Act. Applicants for renewal shall provide documentation of good
16 standing with the Board of Certification for the Athletic Trainer or
17 successor organization.

18 ~~C. An applicant for an apprentice athletic trainer license must~~
19 ~~submit an application to the Board accompanied by a written~~
20 ~~commitment to supervise signed by the licensed athletic trainer who~~
21 ~~will be supervising the applicant. The Board may require the taking~~
22 ~~of an apprentice athletic trainer license examination, which would~~
23 ~~be administered without cost to the applicant. Fees for such~~
24 ~~examination may be established by the Board~~

1 B. The State Board of Medical Licensure and Supervision may
2 authorize the Board Secretary to issue a temporary license to
3 practice prior to licensure, provided all requirements for licensure
4 have been met and verified. The temporary license shall terminate
5 on the date of the next Board meeting at which the applicant may be
6 considered for a license.

7 SECTION 10. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 530.1 of Title 59, unless there
9 is created a duplication in numbering, reads as follows:

10 A. The State Board of Medical Licensure and Supervision is
11 authorized to obtain a national criminal history background check as
12 a condition of eligibility for individuals seeking licensure to
13 practice as an athletic trainer for initial licensure in this state
14 and pursuant to the provisions of an athletic trainer compact as a
15 condition for initial licensure.

16 B. Applicant fingerprints shall be submitted to the Oklahoma
17 State Bureau of Investigation (OSBI) and the national criminal
18 history background check shall be conducted in accordance with
19 Section 150.9 of Title 74 of the Oklahoma Statutes. OSBI shall
20 return national criminal history results to the Board.

21 C. Results obtained from the national criminal history
22 background check shall be used solely for the screening of athletic
23 trainer applicants and shall be retained by the Board. The Board
24

1 shall not disseminate criminal history record information resulting
2 from the background check.

3 SECTION 11. AMENDATORY 59 O.S. 2021, Section 531, is
4 amended to read as follows:

5 Section 531. A. A Beginning January 1, 2027, a license issued
6 pursuant to this act expires one (1) year from the date of issuance
7 the Oklahoma Athletic Trainers Act shall be renewed annually by
8 August 31 of each year. Licensees shall provide documentation of
9 current good standing with the Board of Certification for the
10 Athletic Trainer or successor organization for renewal. Licenses
11 shall be renewed according to procedures established by the State
12 Board of Medical Licensure and Supervision and upon payment of the
13 renewal fee.

14 B. License fees shall be established by the Board;

15 ~~1. An athletic trainer examination fee of Twenty Dollars~~
16 ~~(\$20.00) for each examination taken;~~

17 ~~2. An athletic trainer license fee of Twenty-five Dollars~~
18 ~~(\$25.00);~~

19 ~~3. An athletic trainer annual license renewal fee of Ten~~
20 ~~Dollars (\$10.00); and~~

21 ~~4. An apprentice athletic trainer license fee of Five Dollars~~
22 ~~(\$5.00).~~

23 SECTION 12. AMENDATORY 59 O.S. 2021, Section 533, is
24 amended to read as follows:

1 Section 533. Violation of any provision of ~~this act~~ the
2 Oklahoma Athletic Trainers Act shall be ~~a misdemeanor and conviction~~
3 ~~shall be punishable by a fine of not less than Twenty-five Dollars~~
4 ~~(\$25.00) nor more than Two Hundred Dollars (\$200.00)~~ the State Board
5 of Medical Licensure and Supervision as authorized under subsection
6 D of Section 503.2 of this title.

7 SECTION 13. AMENDATORY 59 O.S. 2021, Section 534, is
8 amended to read as follows:

9 Section 534. A. ~~Any person actively engaged as an athletic~~
10 ~~trainer in this state on the effective date of this act shall,~~
11 ~~within six (6) months of that date, be issued a license if proof is~~
12 ~~submitted of five (5) years' experience as an athletic trainer~~
13 ~~within the preceding ten-year period, and the license fee required~~
14 ~~by the Oklahoma Athletic Trainers Act is paid.~~ Nothing herein in
15 the Oklahoma Athletic Trainers Act shall be construed to require any
16 educational institution or other bona fide athletic organization to
17 use the services of a licensed athletic trainer.

18 B. Athletic trainers shall not misrepresent in any manner,
19 either directly or indirectly, their skills, training, professional
20 credentials, identity or services.

21 C. Any person, as authorized in accordance with Section 5 of
22 Title 76 of the Oklahoma Statutes, may offer prevention, emergency
23 care or first aid services on a voluntary, uncompensated basis, to
24 any amateur or group at an amateur athletic event.

1 SECTION 14. AMENDATORY 59 O.S. 2021, Section 535, is
2 amended to read as follows:

3 Section 535. A. Nothing ~~herein~~ in the Oklahoma Athletic
4 Trainers Act shall be construed to authorize the practice of
5 medicine by any person. The provisions of ~~this act~~ the Oklahoma
6 Athletic Trainers Act do not apply to physicians licensed as such by
7 the State Board of Medical Licensure and Supervision; to dentists,
8 duly qualified and registered under the laws of this state who
9 confine their practice strictly to dentistry as defined by this
10 title; nor to licensed optometrists who confine their practice
11 strictly to optometry as defined by law; nor to licensed
12 chiropractic physicians who confine their practice strictly to
13 chiropractic as defined by law; nor to licensed osteopathic
14 physicians or osteopathic physicians and surgeons who confine their
15 practice strictly to osteopathy as defined by law; nor to
16 occupational therapists who confine their practice to occupational
17 therapy as defined by this title; nor to nurses who practice nursing
18 only as defined by this title; nor to duly licensed podiatric
19 physicians who confine their practice strictly to podiatric medicine
20 as defined by law; nor to physical therapists who confine their
21 practice to physical therapy as defined by this title; nor to
22 masseurs or masseuses in their particular sphere of labor; nor to
23 commissioned or contract physicians ~~or~~, physical therapists, or
24 physical therapists' assistants; nor to athletic trainers if

1 supervised by an Oklahoma licensed physician in the United States
2 Army, Navy, Air Force, Public Health and Marine Health Services; nor
3 to athletic trainers employed by the United States government in the
4 capacity of an athletic trainer providing all of his or her
5 professional activities within a federal facility.

6 B. The provisions of ~~this act~~ the Oklahoma Athletic Trainers
7 Act shall not apply to persons coming into this state for a specific
8 athletic event or series of athletic events with an individual or
9 group not based in this state.

10 SECTION 15. AMENDATORY 59 O.S. 2021, Section 540.11, is
11 amended to read as follows:

12 Section 540.11. A. Upon payment to the State Board of Medical
13 Licensure and Supervision of a fee as provided by the Therapeutic
14 Recreation Practice Act and submission of a written application on
15 forms provided by the Board, the Board may issue a license without
16 examination to any person who is licensed or otherwise certified as
17 a therapeutic recreation specialist by another state or national
18 certifying body which has substantially the same standards for
19 licensure as are required by this state pursuant to the provisions
20 of the Therapeutic Recreation Practice Act.

21 B. Upon proper application and payment of fees, the Board may
22 issue a temporary license to a person who has applied for a license
23 pursuant to the provisions of ~~this act~~ the Therapeutic Recreation
24 Practice Act and who is eligible to take the examination pursuant to

1 the provisions of ~~this act~~ the Therapeutic Recreation Practice Act.

2 The temporary license shall be available to an applicant only with

3 respect to his or her first application for licensure. ~~The~~

4 ~~temporary license shall expire upon notice that the applicant has or~~

5 ~~has not passed the examination.~~

6 SECTION 16. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 888.7A of Title 59, unless there
8 is created a duplication in numbering, reads as follows:

9 A. The State Board of Medical Licensure and Supervision is
10 authorized to obtain a national criminal history background check as
11 a condition of eligibility for individuals seeking licensure to
12 practice as an occupational therapist for initial licensure in this
13 state and pursuant to the provisions of an occupational therapy
14 licensure compact as a condition for initial licensure.

15 B. Applicant fingerprints shall be submitted to the Oklahoma
16 State Bureau of Investigation (OSBI) and the national criminal
17 history background check shall be conducted in accordance with
18 Section 150.9 of Title 74 of the Oklahoma Statutes. OSBI shall
19 return national criminal history results to the Board.

20 C. Results obtained from the national criminal history
21 background check shall be used solely for the screening of
22 occupational therapist applicants and shall be retained by the
23 Board. The Board shall not disseminate criminal history record
24 information resulting from the background check.

1 SECTION 17. AMENDATORY 59 O.S. 2021, Section 889.5, is
2 amended to read as follows:

3 Section 889.5. A. Except as otherwise provided by law, the
4 State Board of Medical Licensure and Supervision shall issue a
5 license to an applicant for a music therapy license when such
6 applicant has completed and submitted an application upon a form and
7 in such manner as the Board prescribes, accompanied by applicable
8 fees, and evidence satisfactory to the Board that the applicant:

9 1. Is at least eighteen (18) years of age;

10 2. Holds a bachelor's degree or higher in music therapy, or its
11 equivalent, from a program approved by the American Music Therapy
12 Association or any successor organization within an accredited
13 college or university;

14 3. Successfully completed a minimum of one thousand two hundred
15 (1,200) hours of clinical training, with at least fifteen percent
16 (15%) or one hundred eighty (180) hours in ~~preinternship~~ pre-
17 internship experiences, and at least seventy-five percent (75%) or
18 nine hundred (900) hours in internship experiences. Internship
19 programs may be approved by an academic institution, the American
20 Music Therapy Association, or both;

21 4. Is in good standing based on a review of the applicant's
22 music therapy licensure history in other jurisdictions, including a
23 review of any alleged misconduct or neglect in the practice of music
24 therapy on the part of the applicant; and

1 5. Passed the examination for board certification offered by
2 the Certification Board for Music Therapists or any successor
3 organization or provides proof of being transitioned into board
4 certification, and the applicant is currently a board-certified
5 music therapist.

6 B. The State Board of Medical Licensure and Supervision shall
7 issue a music therapy license to an applicant when such applicant
8 has completed and submitted an application upon a form and in such
9 manner as the Board prescribes, accompanied by applicable fees, and
10 evidence satisfactory to the Board that the applicant is licensed
11 and in good standing as a music therapist in another jurisdiction
12 where the qualifications required are equal to or greater than those
13 required in ~~this act~~ the Music Therapy Practice Act at the date of
14 application.

15 C. The Board shall waive the examination requirement until
16 January 1, 2020, for an applicant who is designated as a registered
17 music therapist, certified music therapist or advanced certified
18 music therapist and in good standing with the National Music Therapy
19 Registry.

20 D. ~~The State Board of Medical Licensure and Supervision~~ Board
21 may authorize the Board Secretary to issue a temporary license to
22 practice under the supervision of an Oklahoma licensed music
23 therapist prior to licensure, provided all requirements for
24 licensure have been met and verified. The temporary license shall

1 terminate on the date of the next Board meeting at which the
2 applicant may be considered for a license.

3 E. The Board may, upon notice and opportunity for a hearing,
4 deny an application for reinstatement of a license or reinstate the
5 license with conditions. Conditions imposed may include a
6 requirement for continuing education, practice under the supervision
7 of a licensed music therapy specialist, or any other conditions
8 deemed appropriate by the Board.

9 SECTION 18. AMENDATORY 59 O.S. 2021, Section 2033, is
10 amended to read as follows:

11 Section 2033. A. The applicant, except where otherwise defined
12 in the Respiratory Care Practice Act, shall be required to pass an
13 examination, whereupon the State Board of Medical Licensure and
14 Supervision may issue to the applicant a license to practice
15 respiratory care. The Board is authorized to provide for the
16 examination of applicants or to facilitate verification of any
17 applicant's claim that the applicant has successfully completed the
18 required examination for national credentialing as a respiratory
19 care practitioner.

20 B. The Board may issue a license to practice respiratory care
21 by endorsement to:

22 1. An applicant who is currently licensed to practice
23 respiratory care under the laws of another state, territory or
24 country if:

1 a. the qualifications of the applicant are deemed by the
2 Board to be equivalent to those required in this
3 state, and

4 b. the applicant has not been disciplined by agreement
5 not to practice or suspension or revocation of his or
6 her license in another state, territory, or country in
7 the last ten (10) years;

8 2. Applicants holding credentials as a respiratory therapist
9 conferred by the National Board for Respiratory Care (NBRC) or its
10 successor organization as identified by the Respiratory Care
11 Advisory Committee and approved by the State Board of Medical
12 Licensure and Supervision, provided such credentials have not been
13 suspended or revoked; and

14 3. Applicants applying under the conditions of this section who
15 certify under oath that their credentials have not been suspended or
16 revoked.

17 SECTION 19. AMENDATORY 59 O.S. 2021, Section 2039, is
18 amended to read as follows:

19 Section 2039. The practice of respiratory care may be performed
20 in any clinic, physician's office, hospital, nursing facility,
21 private dwelling, or other place or by telemedicine in accordance
22 with the prescription or verbal order of a physician, and shall be
23 performed under the supervision of a qualified medical director or
24 physician licensed to practice medicine or surgery in this state.

1 SECTION 20. AMENDATORY 76 O.S. 2021, Section 17, is
2 amended to read as follows:

3 Section 17. A. Whenever a claim of personal injury is made
4 against any practitioner of the healing arts or a licensed hospital,
5 a report shall be made to the appropriate licensing board or agency
6 by the liability insurer of such practitioner or hospital within
7 sixty (60) days after receipt of information that a claim is being
8 made. In the event that such claim is made against a party not
9 insured, the report shall be made by the party. The report shall be
10 in writing on a form containing the following information:

- 11 1. The name and address of the practitioner or hospital;
- 12 2. The name, age and address of the claimant;
- 13 3. A brief statement of the nature of the injury, illness or
14 condition complained of and the act or omission complained of; and
- 15 4. Whether a suit is pending and, if so, the court, style and
16 docket number of the action.

17 B. And whenever such claim or suit is concluded, the
18 disposition shall be reported to the appropriate board or agency
19 promptly.

20 C. This report shall be privileged except as hereinafter
21 provided.

22 D. The licensing board or agency shall take any remedial,
23 disciplinary or corrective action as it may deem warranted by the
24 facts contained in the report.

1 E. Any person or liability insurer failing to furnish a report
2 on a claim as required in this section shall be guilty of a
3 misdemeanor.

4 ~~Further, the board or agency shall annually furnish the~~
5 ~~President Pro Tempore of the Senate and the Speaker of the House of~~
6 ~~Representatives a full report of all such claims except that names~~
7 ~~and addresses of all parties shall be omitted. Such report shall~~
8 ~~include disposition of the claim as well as a report of all action~~
9 ~~taken by the board or agency and the reason therefor.~~

10 SECTION 21. REPEALER 59 O.S. 2021, Section 493.2, as
11 amended by Section 3, Chapter 350, O.S.L. 2025 (59 O.S. Supp. 2025,
12 Section 493.2), is hereby repealed.

13 SECTION 22. This act shall become effective November 1, 2026.

14 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
15 March 2, 2026 - DO PASS AS AMENDED BY CS
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